

Guidance

Apply for an exemption from PSVAR accessibility regulations for home-to-school or rail replacement services

Apply for an exemption from the Public Service Vehicles Accessibility Regulations (PSVAR) 2000 for home-to-school or rail replacement coach services.

From: **Department for Transport (/government/organisations/department-for-transport)**

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Applies to England, Scotland and Wales

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Who is eligible for an exemption?

The exemption is for operators with coaches that are non-compliant or partially compliant with PSVAR 2000, which are used to provide either or both of the following:

- a 'closed door' home-to-school (HTS) service, transporting eligible passengers to and from educational institutions
- a rail replacement (RR) service, transporting passengers to their destinations when train services cannot run

How to apply

To apply, you'll need to provide:

- your contact details
- your operator ('O') licence number (<https://www.gov.uk/apply-vehicle-operator-licence>)
- the vehicle identification number (VIN) for every vehicle in your fleet used for HTS or RR services, whether compliant with PSVAR or not
- contact details for the commissioning train operating company or companies - if providing RR services

The period for application has now concluded.

For us to process your application and (where applicable) issue an exemption before current exemptions expire, applications must be received by:

- 17 May 2022 for fleets providing RR services
- 17 May 2022 for fleets providing both RR and HTS services
- 31 May 2022 for fleets providing HTS services



Only one application will be required from each operator, whether they are applying for exemptions to operate HTS, RR or both services.

Where applications are received after the deadline, we cannot guarantee that they will be processed, or that any resulting exemption certificate will be issued ahead of the current round of short-term exemptions expiring.

Exemption period

Where granted, exemptions will commence on 1 July 2022 (replacing any existing exemptions which are due to expire on 30 June 2022 for RR and 31 July 2022 for HTS services) and expire on 31 July 2026, contingent on the holder meeting their compliance terms.

Exemption use

A copy of the exemption must be carried onboard any vehicle in the operator's fleet that is not fully compliant with PSVAR, and is used for HTS or RR services.

An exemption does not absolve the commissioner of an HTS or RR service from the obligation to provide alternative accessible transport to passengers who cannot access vehicles covered by an exemption because they do not comply with PSVAR. Operators holding an exemption must obtain and retain alongside the exemption written confirmation that such alternative accessible transport will be provided.

Compliance

Non-compliance with any terms and conditions listed on the exemption certificate will be treated as non-compliance with PSVAR, and may be subject to enforcement action by DVSA. This includes adhering to exemption terms which will require increasing levels of compliance with PSVAR over time.

These exemptions will expire on 31 July 2026. From 1 August 2026, operators will be expected to comply with PSVAR in full, subject to any changes which may be implemented as a result of the upcoming review of PSVAR.

Exemption compliance schedule

Exemption compliance requirements will depend on the band assigned.

When determining the number of fleet vehicles required to comply via percentage calculation, numbers must always be rounded up, even when the percentage is a decimal point of less than 0.5. For example, a calculation of 1.3 vehicles would mean 2 vehicles must comply.

These tables outline the minimum compliance level required. Operators are encouraged to exceed these minimum requirements.

Compliance schedule bands



All vehicles granted an exemption will be exempt from PSVAR between 1 July 2022 and 31 July 2023.

Band A requirements

For fleet sizes between 1 and 5 vehicles.

You must reach the following minimum levels of compliance.

Date	Level of compliance
By 1 August 2023	At least 25% of fleet partially compliant.
By 1 August 2024	At least 50% of the fleet partially compliant.
By 1 August 2025	At least 1 fully compliant vehicle, with the rest of the fleet partially compliant.

Read the section on compliance schedule definitions.

Band B requirements

For fleet sizes between 6 and 9 vehicles.

You must reach the following minimum levels of compliance.

Date	Level of compliance
By 1 August 2023	At least 25% of fleet partially compliant.
By 1 August 2024	At least 1 fully compliant vehicle and at least 50% of the fleet partially compliant.
By 1 August 2025	At least 2 fully compliant vehicles, with the rest of the fleet partially compliant.



Read the section on compliance schedule definitions.

Band C requirements

For fleet sizes between 10 and 29 vehicles.

You must reach the following minimum levels of compliance.

Date	Level of compliance
By 1 August 2023	At least 25% of fleet partially compliant.
By 1 August 2024	At least 15% of the fleet fully compliant and at least 50% of the fleet partially compliant.
By 1 August 2025	At least 25% of the fleet fully compliant, with the rest of the fleet partially compliant.

Read the section on compliance schedule definitions.

Band D requirements

For fleet sizes of 30 vehicles or more.

You must reach the following minimum levels of compliance.

Date	Level of compliance
By 1 August 2023	At least 15% of fleet fully compliant and at least 25% of the fleet partially compliant.
By 1 August 2024	At least 25% of the fleet fully compliant and at least 50% of the fleet partially compliant.
By 1 August 2025	At least 35% of the fleet fully compliant, with the rest of the fleet partially compliant.

Read the section below on compliance schedule definitions.

Compliance schedule definitions

‘Fleet’ refers to the total number of vehicles used for HTS or RR services. Vehicles not used for either HTS or RR services should not be counted. HTS services with no paying customers are not in scope of PSVAR. A vehicle used for HTS or RR services that is temporarily out of service is still considered to be part of the fleet, subject to the judgment of DVSA during any inspection.

‘Fully compliant’ refers to a vehicle that complies with all paragraphs of the following parts of PSVAR:

- schedule 1, concerning facilities for wheelchair users
(<https://www.legislation.gov.uk/ukxi/2000/1970/schedules/made>)
- schedule 3, concerning other accessibility features
(<https://www.legislation.gov.uk/ukxi/2000/1970/schedules/made#schedule-3>)



'Partially compliant' refers to a vehicle that is not fully compliant, but as a minimum complies with the following parts of PSVAR schedule 3 (<https://www.legislation.gov.uk/ukxi/2000/1970/schedules/made#schedule-3>):

- paragraph 2 (floors and gangways)
- paragraph 3 (seats)
- paragraph 4 (steps, excluding sub-paragraphs 1d, 1e, 1f, and 5)
- paragraph 5 (handrails)

Band changes

A change in fleet size could lead to a band change. For example, if an operator's fleet size expanded from 5 to 6 vehicles as a result of acquiring a new vehicle, they would move from band A to band B.

It is the operator's responsibility to determine whether a band change has occurred.

Where an operator's band has changed, they must within 5 working days of the change contact us at the email address below.

Contact us

You can report a band change or contact us with any questions via psvar@dft.gov.uk.

Background

You can also read:

- impact assessments providing detailed analysis on the costs and benefits to industry of exemptions from accessibility regulations, and consideration for the Public Sector Equality Duty (<https://www.gov.uk/government/publications/exemptions-to-the-public-service-vehicles-accessibility-regulations-psvar-2000>)
- The Public Service Vehicles Accessibility Regulations 2000 on legislation.gov.uk (<https://www.legislation.gov.uk/ukxi/2000/1970/made>)



The proposed exemption for HTS and RR services was originally set out in correspondence from Baroness Vere, Parliamentary Under Secretary of State in December 2021 (<https://www.gov.uk/government/publications/public-service-vehicles-accessibility-regulations-2000-and-their-application-to-home-to-school-and-rail-replacement-coach-services>).

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